
Journal

1970 PLD 169

Court

HIGH COURT OF WEST PALISTAN (PESHAWAR BENCH)

Date

1970-03-18

Appeal No.

CJVIL REVISION NO. 40 OF 1970

Judge

QADEERUDDIN AHMAD, C. J. AND NASIM HASAN SHAH

Parties

KARIM BAKHSH DEFENDANT PETITIONER VERSUS MST. MUBARIK JAN PLAIN TIFF
RESPONDENT

Lawyers

MUHAMMAD LATIF FOR PETITIONER. FAKHRE ALAM, A. A. G. PRESENT.PIR BAKHSH :
AMICUS CURIAE.

Statutes

CONSTITUTION OF PAKISTAN 1962 - ARTICLE 102 READ WITH ARTICLE 98 CIVIL
PROCEDURE CODE (V OF 1908) - S. 151

Judgment

Judgment .

Nasim Hasan Shah, J.-The facts which form the background are that the nikah ceremony between the petitioner and the respondent was performed on 2-10-1954. According to the respondent she came to know before her rukhsati that the petitioner was a man of ill repute and a drunkard. She, therefore, instituted a suit against the present petitioner before a Union Council for dissolution of the marriage and obtained a decree. The decree was challenged by the present petitioner by a revision petition before the Controlling Authority. During the pendency of this revision petition, the petitioner also instituted a suit for restitution of conjugal rights before the Judge, Family Court, Peshawar. The respondent also filed a suit before the same Court, for dissolution of the marriage by way of khula\ Both the suits were consolidated by the learned Family Court and heard together.

On the pleadings of the parties, the following issues were framed: (1) Whether the plaintiff has got a cause of action? (2) Whether a valid decree of dissolution has been granted to the plaintiff against the defendant by the Chairman, Ward No. 13, if so, its effect? (3) Whether the plaintiff is entitled to a decree of dissolution by way of khula' ? (4) Relief.

2. Both the suits were disposed of by the learned Family Court by a common judgment passed on 29th November 1969. His finding as regards issue No. 1 was that the plaintiff, the respondent herein, had a cause of action. Issue No. 2 was also held in favour of the plaintiff, and it was observed that in view of the fact that the respondent had applied to a Union Council for the dissolution of her marriage which relief was granted and the present petitioner's revision against it was also dismissed, the marriage stood properly dissolved. He further observed that in the proceedings before the Family Court the respondent could rely on the decree which she had obtained in her favour and that the regular suit which was filed by her amounted to duplication. He, however, examined the ground on which the decree of dissolution of marriage was granted and held that the right to dissolve the marriage was delegated to her in the Nikalmama (Exh. P. W. 3/1) and that the Chairman of the Union Council constituted a proper Conciliation Court which could and had granted her the decree of dissolution of marriage. The marriage, thus stood dissolved under section 8 of the Muslim Family Laws Ordinance (VIII of 1961). The said decree in the opinion of the learned trial Judge, was properly granted. His conclusion was that the suit of the petitioner for restitution of conjugal rights, in the presence of a lawful decree for dissolution of the marriage, was incompetent. As regards issue No. 3, the Court found that in the presence of a proper decree of dissolution of marriage granted to the respondent against the present petitioner, it was not proper to re-open the question particularly because the petitioner was not able to prove that the decree which was passed in favour of the respondent was a nullity in law. The Court held that there was nothing to be added to that decree. That decree was accordingly endorsed. The respondent's suit was decreed and that of the petitioner dismissed.

3. Against the above judgment the present petitioner filed separate appeals before the learned District Judge, Peshawar. The appeal filed by him against the decree dissolving the marriage was dismissed by the learned District Judge vide his order dated 13-1-1970 on the ground that the appeal was incompetent. An appeal against the judgment of the Family Court dismissing the suit for restitution of conjugal rights is still pending. The said appeal seems to have become infructuous owing to the decree for dissolution of marriage-See Sh. Qudrat Ullah v. Mst. Iqbal Begum etc. The husband has now filed this petition under Article 102 of the 1962-Constitution seeking the reversal of the judgment and decree of the Family Court as well as the judgment and decree of the learned District Judge.

4. Mr. Muhammad Latif, Advocate, in support of his petition for setting aside of the judgment and decree passed by the Family Court has relied upon two judgments of two Single Benches of this Court reported as Mst. Gaman v. Taj Din (2) and as Mst.

Sofia Begum v. Abdul Hamid In both of those cases the question was whether the High Court could in exercise of its jurisdiction under Article 102 of the Constitution, transfer a suit pending in one Family Court for trial to another Family Court. In both of these judgments it was held that a Family Court is a Court subordinate to the High Court, within the meaning of Article 102 of the Constitution, and that the powers conferred by the said provision of law upon the High Courts include the power to transfer a case from one Family Court to another.

5. We respectfully agree with the view expressed in the above judgments that a Family Court, constituted under the West Pakistan Family Courts Act (XXXV of 1964), is a Court subordinate to the High Court, within the meaning of Article 102 of the 1962-Constitution. Likewise, we agree with the proposition that the power conferred by the Article on the High Court "to supervise and control all other Courts that are subordinate to it" being a general power and includes the control of subordinate Courts not merely administratively but also judicially. We are also in accord with the view, taken in those judgments, that Article 102 confers upon the High Court unlimited power to correct or revise all proceedings, orders and judgments of the Courts subordinate to it, for the purpose of enforcing the law correctly and guiding or compelling the subordinate Courts to follow the law and to exercise their jurisdiction properly.

6. We should note that Article 102 does not provide any relief which is to be granted under it, nor does it refer to the qualification, which may entitle any body to apply to the Court for getting relief under it. It is a provision which stands in contrast with such provisions as Article 98 of the Constitution of 1962 and section 151, C. P. C. of 1908. We reproduce below the three provisions for comparison : A "102. Each High Court shall supervise and control all other Courts that are subordinate to it.

98.-(1) A High Court shall have such jurisdiction as is conferred on it by this Constitution or by law.

(2) Subject to this Constitution a High Court of a province may, if it is satisfied that no other adequate remedy is provided by law- (a) on the application of any aggrieved party, make an order- (i) directing a person performing in the province functions in connection with the affairs of the centre, the province or a local authority to refrain from doing that which he is not permitted by law to do, or to do that which he is required by law to do ; or (ii) declaring that any act done or proceeding taken in the province by a person performing functions in connection with the affairs of the Centre, the Province or a local authority has been done or taken without lawful authority, and is of no legal effect ; or (b) on the application of any person, make an order- (i) directing that a person in custody in province be brought before the High Court so that the Court may satisfy itself that he is not being held in custody without lawful authority or in an unlawful manner ; or (»i) requiring a person in the province holding or purporting to hold a public office to show' under what authority of law he claims to hold that office ; or (c) on the application of any aggrieved person, make an order giving such directions to any person or authority, including any Government, exercising any power or performing any function in, or in relation to, any territory within the jurisdiction of that Court as may be appropriate for the enforcement of any of the fundamental rights conferred by Chapter 1 of Part II of this Constitution.

(3) An order shall not be made under clause (2) of this Article- (a) on application made by or in relation to a person in the Defence Services of Pakistan in respect of his terms and conditions of

service, in respect of any matter arising out of his service or in respect of any action taken in relation to him as a member of the Defence Services of Pakistan ; or (b) on application made by or in relation to any other person in the service of Pakistan in respect of his terms and conditions of service, except a term or condition of service that is specified in this Constitution.

(4) Where- (a) application is made to a High Court for an order under paragraph (a) [or paragraph (c)] of clause (2) of this Article ; and (b) the Court has any reason to believe that the making of an interim order would have the effect of prejudicing or interfering with the carrying out of a public work or of otherwise being harmful to the public interest.

the Court shall not make an interim order unless the prescribed law officer has been given notice of the application and the Court, after the law officer (or any person authorised by him in this behalf) has been given an opportunity of being heard, is satisfied that the making of the interim order would not have the effect referred to in paragraph (b) of this clause.

(5) In this Article, unless the context otherwise requires - "Person" includes any body politic or corporate, any authority of or under the control of the Central Government or of a Provincial Government and any Court or tribunal, other than the Supreme Court, a High Court or a Court or tribunal established under a law relating to the Defence Services of Pakistan.

"Prescribed law officer" means- (a) in relation to an application affecting the Central Government or an authority of or under the control of the Central Government-the Attorney-General and (b) in any other case-the Advocate-General of the Province in which the application is made.

S. 151, C. P. C.-Nothing in this Code shall be deemed to limit or otherwise affect the inherent power of the Court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Court." A comparison of the above provisions will show that Article 102 is not meant to be invoked by a party, nor is the Court required by it to provide relief to any body. As against this, Article 98 of the Constitution is meant to provide relief to aggrieved parties, section 151, C. P. C. is intended to prevent abuse of the process of Court as well as to empower the Court to make such orders as may be necessary for the ends of justice Article 102 of the Constitution on the contrary merely empowers the High Courts to supervise and control all Courts subordinate to it. The power is meant to enable the High Court to discharge its duties as a superior Court towards fair and proper administration of justice. The High Court has the authority to check and prevent dereliction of duty and to stop as well as correct violations of law. As observed in *Emperor v. Tarapore* (1) "superintendence" includes the power to guide, advise and encourage Judges of the subordinate Courts. According to the Allahabad High Court "superintendence" includes the power to direct subordinate Courts and tribunals to carry out its orders vide *Sant Lai Mahadeo Prasad v. Kedar Nath* According to their Lordships of the Privy Council this includes the authority to direct inquiry with a view to take disciplinary action for cases of flagrant maladministration of justice. See *Rajkumar v. Ramsundar* The observations made in certain judicial pronouncements, while discussing the scope of section 107 of the Government of India Act, 1915, and Article 227 of the Indian Constitution which provisions are in many ways to the same effect as the provisions of Article 102 of our Constitution of 1962, indicate that the purpose of these provisions is not to convert the High Courts into Courts of appeal or of revision- See *Jalaluddin v. Jalalud-din* (4) and *Rajkamal v. Indian Motion Picture Union* (5) cited in Basu's Commentary on the Constitution of India, 4th Edn., Vol. IV, p. 6.

We respectfully agree with this view and our reason for holding this view is that this supervision and control is for making and keeping the administration of justice pure and not to help any particular party. This duty can be performed irrespective of whether any body has been harmed or not and irrespective of whether any body will be benefited by it or not. Its exercise may be

distasteful to some and gratifying to others but that is immaterial because this power is not exercised ex debito justitiae but in the interest of good administration of justice. There is a clear difference between these two objects-See The King v.

Richmond Confirming Authority The object of this provision is to enable the High Court to establish orderly, honourable, upright, impartial and legally correct administration of justice.

7. No doubt, in the process of supervising the conduct of the subordinate Courts it is possible that some order passed or direction given by a subordinate Court be set aside or suitably modified with the incidental result that one of the parties to a cause be benefited. The relief that may come to the party, however, would come to it only collaterally. Moreover, it is not contemplated in the terms of Article 102, that the High Court should issue an order against a party to a cause as such, This also shows that the High Court is under this provision concerned only with the Courts subordinate to it rather than with the parties to a cause.

8. We have to see .in the light of the above discussion whether this is a fit case in which the order of the Family Court requires to be interfered with in terms of Article 102 of (1) A I R 1940 Sind 230 at p. 244 (2) A I R 1935 All. 519 (3) A I R 1932 P C 69 (4) 1962 S C (C. A. 602/61) (5) 1962 S C (C. A. 622/61) (6) (1921) 1 K B 248 the Constitution. We observe that the Family Court has passed a decree for dissolution of marriage and that this it could do under the Statute. We also note that under the relevant statute no appeal is provided against such a decree, except in one circumstance vide section 14 of the Act which is not arising herein. This section intends to confer finality on the decrees and to stop all controversies regarding the subsistence of the marital tie between the parties. The attempt of the petitioner to revive by this petition a controversy which stands concluded with the passing of the decree of dissolution of marriage by the Conciliation Court as well as by the decree of the Family Court, tantamounts to subverting the purpose of the law. The grounds on which the judgment and decree of the Family Court is impugned, namely, that the evidence of dissolution of marriage recorded by the Conciliation Court should not have been permitted by the Family Court and that the Family Court should not have based its conclusions on the findings recorded by the Conciliation Court are not at all adequate to justify interference with the judgment and orders passed by the Family Court in the present case. No justification exists, therefore, to invoke the powers of control vested in the High Court under Article 102 of the Constitution in this case.

9, The order of dismissal of the petition was announced at the close of the hearing on 18th of March 1970. The above are our reasons for the order that was announced on that date.

A. e./k. b. a. Petition dismissed.

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